

# SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

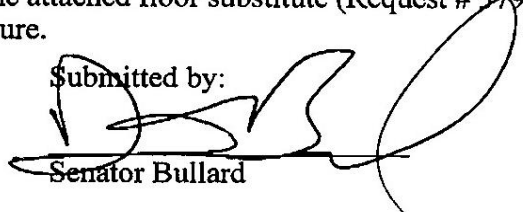
No. 1

☐ COMMITTEE AMENDMENT

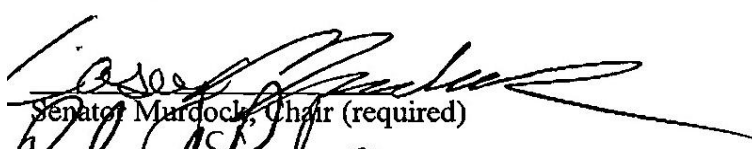
(Date)

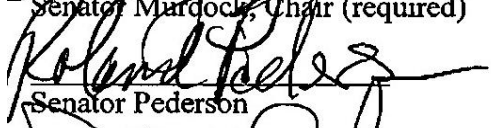
I move to amend Senate Bill No. 2157 by substituting the attached floor substitute (Request # 3790) for the title, enacting clause and entire body of the measure.

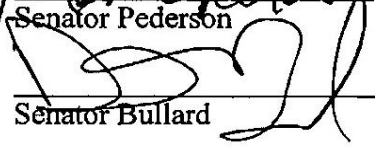
Submitted by:

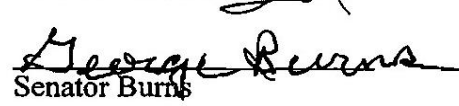
  
Senator Bullard

I hereby grant permission for the floor substitute to be adopted.

  
Senator Murdoch, Chair (required)

  
Senator Pederson

  
Senator Bullard

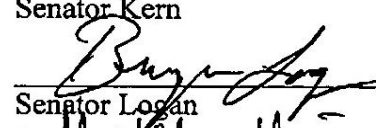
  
Senator Burns

\_\_\_\_\_  
Senator Green

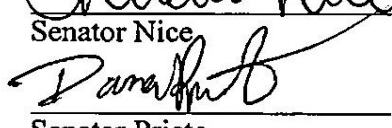
  
Senator Grellner

  
Senator Hicks

\_\_\_\_\_  
Senator Kern

  
Senator Logan

  
Senator Nice

  
Senator Prieto

  
Senator Wingard

\_\_\_\_\_  
Senator Woods

\_\_\_\_\_  
Senator Paxton, President Pro Tempore

\_\_\_\_\_  
Senator Daniels, Majority Floor Leader

Note: Agriculture and Wildlife committee majority requires seven (7) members' signatures.

Bullard-YG-FS-SB2157

3/11/2026 3:19 PM

(Floor Amendments Only)

Date and Time Filed: 3-11-26

4:10pm Jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE  
FOR

SENATE BILL NO. 2157

By: Bullard, Burns, Hamilton,  
and Hines of the Senate

and

Grego of the House

FLOOR SUBSTITUTE

[ scenic rivers - Southeast Scenic Rivers Commission -  
funds - membership - powers and duties - promulgation  
of rules - codification - effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 29 O.S. 2021, Section 3-103, as  
amended by Section 1, Chapter 6, O.S.L. 2024 (29 O.S. Supp. 2025,  
Section 3-103), is amended to read as follows:

Section 3-103. A. The Oklahoma Wildlife Conservation  
Commission shall constitute an advisory, administrative and  
policymaking board for the protection, restoration, perpetuation,  
conservation, supervision, maintenance, enhancement, and management  
of wildlife in this state as provided in the Oklahoma Wildlife  
Conservation Code.

1 B. The Director of Wildlife Conservation shall consult with the  
2 Commission regarding the administration of the affairs of the  
3 Department of Wildlife Conservation. The Commission is authorized  
4 and empowered to require from the Director complete reports and  
5 information relative to the affairs of the Department at the time  
6 and in the manner the Commission may deem advisable.

7 C. The Commission shall meet in regular session at least nine  
8 (9) times per year not to exceed one meeting per month with not more  
9 than two (2) consecutive calendar months between meetings and in  
10 special sessions as may be called by the Chair of the Oklahoma  
11 Wildlife Conservation Commission or a majority of the Commission.  
12 The Commission may hold any regular or special session at any  
13 location within this state. ~~Should a location be chosen other than~~  
14 ~~Commission headquarters in Oklahoma City for a regular or special~~  
15 ~~meeting, notice shall be posted at Commission headquarters in~~  
16 ~~Oklahoma City and~~ The meeting shall be advertised in the local  
17 newspaper of the city in which the meeting is to be held, at least  
18 one (1) time during each of the two (2) weeks prior to the meeting.  
19 The advertisements shall include the time, date, and address of the  
20 location of the meeting.

21 D. In addition to the other powers and duties prescribed by  
22 law, the Commission shall:

23 1. ~~Institute an affirmative action plan for hiring women and~~  
24 ~~minorities throughout the agency;~~

1       ~~2.~~ Elect a chair, vice chair, and secretary, who shall perform  
2 the duties required of them by statutes, rules of the Commission,  
3 and the Oklahoma Constitution ~~of the State of Oklahoma~~. The chair,  
4 vice chair, and secretary shall receive no extra compensation;

5       ~~3.~~ 2. Appoint a Director, and determine the qualifications of  
6 the Director and all assistants and employees. A Commissioner shall  
7 not be eligible for employment in any position within the  
8 Department;

9       ~~4.~~ 3. Prescribe rules and policies for the transaction of its  
10 business and the control of the Department;

11       ~~5.~~ 4. Develop and implement a plan to provide step raises for  
12 Commission employees so that discrepancies of pay levels within a  
13 pay grade are eliminated;

14       ~~6.~~ 5. Acquire by purchase, lease, gift, or devise, waters, real  
15 property, and personal property incident to the exercise of its  
16 functions and to maintain, operate, and dispose of the same;

17       ~~7.~~ 6. Acquire real property by condemnation only when the  
18 Attorney General or other counsel deems it an appropriate means of  
19 clearing title from willing or unavailable sellers;

20       ~~8.~~ 7. Supervise the establishment, extension, improvement, and  
21 operation of the wildlife refuges, propagation areas or stations,  
22 public hunting areas, public fishing areas, game management areas,  
23 and fish hatcheries;

1       ~~9.~~ 8. Prescribe the manner of cooperation with the Oklahoma  
2 Tourism and Recreation Department, colleges and universities within  
3 the state, other state agencies, any agency of the federal  
4 government, and any city, town, school district, or any other agency  
5 or organization in study of conservation and propagation of wildlife  
6 and in the establishment, maintenance, and operation of visual  
7 educational facilities, recreational facilities, and hunting and  
8 fishing facilities, in the study and propagation of wildlife;

9       9. Prescribe the manner of cooperation with the Southeast  
10 Scenic Rivers Commission created in Section 4 of this act;

11       10. Supervise the letting of all contracts and purchases for  
12 the Department, with all purchases of personal property to be made  
13 through the Office of Management and Enterprise Services;

14       11. Authorize all claims or expenditures prior to incurring  
15 payment except as otherwise provided in this Code;

16       12. Prescribe rules on the use of Department-owned vehicles by  
17 the Director, department heads and other essential employees as the  
18 Commission deems necessary in order to perform their duties;

19       13. Prescribe rules for the sale of all regular or special  
20 licenses;

21       14. Publicize and encourage the conservation and appreciation  
22 of wildlife and all other natural resources;

23       15. Regulate the seasons and harvest of wildlife;

24

1 16. Promulgate rules to sell fishing and hunting licenses via  
2 the Internet;

3 17. Annually report electronically to the Governor and the  
4 Legislature on the complete operation, activities, and plans of the  
5 Department, together with such recommendations for future activities  
6 as the Commission may deem to be in the best interest of the state;  
7 and

8 18. Provide the Governor and the Legislature with an annual  
9 inventory of all property and equipment.

10 E. Five (5) years after ~~the effective date of this act~~ July 1,  
11 2024, and every five (5) years thereafter, the Commission shall  
12 prepare a report for the Legislature with proposed licensing fees  
13 based on the latest Consumer Price Index year-to-date percent change  
14 release as of the date of the annual average county wage data  
15 release from the Bureau of Economic Analysis of the ~~U.S.~~ United  
16 States Department of Commerce for Legislature approval or rejection.

17 SECTION 2. NEW LAW A new section of law to be codified  
18 in the Oklahoma Statutes as Section 898 of Title 82, unless there is  
19 created a duplication in numbering, reads as follows:

20 This act shall be known and may be cited as the "Southeast  
21 Scenic Rivers Act".

22 SECTION 3. NEW LAW A new section of law to be codified  
23 in the Oklahoma Statutes as Section 898.1 of Title 82, unless there  
24 is created a duplication in numbering, reads as follows:

1       The Legislature finds that certain free-flowing streams and  
2 rivers of Oklahoma possess such unique natural scenic beauty, water,  
3 fish, wildlife, and outdoor recreation value of present and future  
4 benefit to the people of the state that it is the policy of the  
5 Legislature to preserve those areas for the benefit of the people of  
6 Oklahoma. For this purpose, the following are hereby designated as  
7 southeast scenic rivers:

8       1. The Glover River in McCurtain County;

9       2. The Kiamichi River in Choctaw, Pushmataha, and Le Flore  
10 Counties;

11       3. The Little River in McCurtain, Pushmataha, and Le Flore  
12 Counties; and

13       4. The Mountain Fork River in Le Flore and McCurtain Counties.

14       SECTION 4.       NEW LAW       A new section of law to be codified  
15 in the Oklahoma Statutes as Section 898.2 of Title 82, unless there  
16 is created a duplication in numbering, reads as follows:

17       A. For the purposes of this section:

18       1. "Industrial water" includes, but is not limited to, water  
19 used in the manufacturing of metals, chemicals, paper, food, and  
20 beverages, and for the purpose of mining, power generation, the  
21 extraction or washing of minerals or other sources of energy such as  
22 oil and natural gas; and

23       2. "Nonlocal" means a municipality or county that is not within  
24 the immediate vicinity of a river.

1       B. There is hereby created the Southeast Scenic Rivers  
2 Commission for the management of designated scenic river areas or a  
3 combination of areas for which operating areas for planning and  
4 management have been delineated. The Commission shall be an agency  
5 of the state. State funds for the Commission shall be provided for  
6 by a separate line-item appropriation to the Southeast Scenic Rivers  
7 Commission and shall be subject to available funding.

8       C. The Commission shall consist of eleven (11) members. The  
9 term of office for each member shall be four (4) years. The  
10 Commission shall be composed of the following members:

11       1. Three members appointed by the Governor, one of whom shall  
12 be a representative of the Oklahoma Conservation Commission or the  
13 Oklahoma Tourism and Recreation Commission from a list provided by a  
14 Senator or a Representative, chosen by the Governor, representing  
15 the affected county of the scenic river designation;

16       2. Two members appointed by the President Pro Tempore of the  
17 Senate, one of whom shall be a member of a statewide citizens'  
18 conservation or environmental group and one of whom shall be a  
19 member of an accredited state college or university specializing in  
20 agricultural sciences and natural resources from a list provided by  
21 a Senator, chosen by the President Pro Tempore, representing the  
22 affected county of the scenic river designation;

23       3. Two members appointed by the Speaker of the House of  
24 Representatives, one of whom shall be from the membership of a



1 federally recognized tribe in one of the counties containing the  
2 scenic river area, and one of whom shall be a representative of the  
3 agriculture industry from a list provided by a Representative,  
4 chosen by the Speaker, representing the affected county of the  
5 scenic river designation; and

6 4. The remaining four members of the Commission shall be  
7 selected from the constituency of the Senator or Representative  
8 chosen by either the President Pro Tempore of the Senate or Speaker  
9 of the House of Representatives, as follows:

- 10 a. from the registered voters who reside, own real  
11 property, or own permanent residential structures  
12 within six hundred sixty (660) feet of the Glover  
13 River within McCurtain County,
- 14 b. from the registered voters who reside, own real  
15 property, or own permanent residential structures  
16 within six hundred sixty (660) feet of the Kiamichi  
17 River within Choctaw, Pushmataha, or Le Flore County,
- 18 c. from the registered voters who reside, own real  
19 property, or own permanent residential structures  
20 within six hundred sixty (660) feet of the Little  
21 River within McCurtain, Pushmataha, or Le Flore  
22 County, and
- 23 d. from the registered voters who reside, own real  
24 property, or own permanent residential structures

1                   within six hundred sixty (660) feet of the Mountain  
2                   Fork River within Le Flore or McCurtain County.

3           D.   The Commission shall promulgate all rules necessary for the  
4   conduct of appointments for Commission members.

5           E.   A vacancy on the Commission shall be filled for the  
6   unexpired term in the same manner as the original appointment.  Each  
7   appointed member shall serve at the pleasure of his or her  
8   appointing authority.  Each appointing member shall not have more  
9   than one selection in the event of an appointment or vacancy.

10          F.   The Commission shall elect a chair and such other officers  
11   as the Commission deems necessary to conduct the affairs of the  
12   Commission.  Six members of the Commission shall constitute a  
13   quorum, and the vote of the majority of members present shall be  
14   necessary for any action to be taken by the Commission.  No vacancy  
15   in the membership of the Commission shall impair the rights of a  
16   quorum to exercise and perform all the rights and duties of the  
17   Commission.

18          G.   The Commission shall hold meetings not less than once each  
19   quarter, at such times as may be fixed by call of the chair or as  
20   determined by a majority vote in advance of the meeting.  It is the  
21   responsibility of the Commission to encourage the general public to  
22   participate in the formation and adoption of plans, standards,  
23   procedures, and regulations.

1 H. 1. A Commission member to whom some private benefit, direct  
2 or indirect, financial or otherwise, may come as a result of some  
3 public action shall not be a participant in that action. The  
4 possibility, not actuality, of a conflict of interest shall govern.

5 2. A Commission member, pursuant to paragraph 1 of this  
6 subsection, shall declare his or her interest publicly, abstain from  
7 voting, and refrain from deliberation on the matter. The Commission  
8 member shall not discuss the matter with any fellow member for the  
9 purpose of influencing a decision thereon.

10 I. The meetings of the Commission shall be subject to the  
11 Oklahoma Open Meeting Act and the Oklahoma Open Records Act.

12 J. 1. The Southeast Scenic Rivers Commission shall prepare and  
13 establish minimum standards for planning and other ordinances and  
14 rules for the implementation of this act by counties,  
15 municipalities, or any political subdivisions in the operating area.  
16 The standards shall be developed and executed in such a manner as to  
17 protect and enhance the values that caused the area to be designated  
18 a scenic river area without limiting other uses that do not  
19 substantially interfere with the protection, public use, and  
20 enjoyment of these values. Primary emphasis on the standards shall  
21 be given to protecting the aesthetic, scenic, historic, archeologic,  
22 ecological, and scientific features of the scenic river area with  
23 due consideration being given to the orderly development of the  
24 lands adjacent and contiguous to the scenic river area. Standards

1 set pursuant to the provisions of this act shall not exceed those  
2 established by any other federal or state agency possessing  
3 jurisdiction of the designated area.

4 2. The standards established pursuant to this subsection shall  
5 prohibit:

- 6 a. diverting water, including industrial water, for  
7 nonlocal municipalities or counties for the purposes  
8 of sale, profit, power generation, or battery or data  
9 storage,
- 10 b. diversion of water for nonlocal agricultural purposes,  
11 or
- 12 c. the building of any dams, impoundments, or diversion  
13 structures.

14 This paragraph shall not apply to existing practices or structures  
15 existing before the effective date of this act.

16 K. The Southeast Scenic Rivers Commission shall have the  
17 additional powers and duties to:

- 18 1. Appoint and fix the salary of an administrator experienced  
19 in land resource planning and management who shall serve at the  
20 pleasure of the Commission and in accordance with its policies,  
21 budgets, powers, and responsibilities. Such administrator may be  
22 commissioned as a peace officer or game warden. The administrator  
23 may select, appoint, and employ individuals to fill personnel  
24

1 positions authorized, budgeted, and deemed necessary by the  
2 Commission to implement the purposes of this act;

3 2. Act in cooperation with all federal, state, and local  
4 governments and agencies;

5 3. Coordinate with the Oklahoma Wildlife Conservation  
6 Commission for the enforcement of this act;

7 4. Prepare and adopt a management plan or plans to guide and  
8 control public programs and to include varying degrees of protection  
9 and development based on the special attributes of the area;

10 5. Provide for the review and consideration of the impact on  
11 the natural and aesthetic environment within the designated area  
12 related to any existing or proposed action by public agencies,  
13 private individuals, or any other activity;

14 6. Accept real and personal property that is granted,  
15 bequeathed, devised, or conveyed to the Southeast Scenic Rivers  
16 Commission to implement the purposes of this act, upon such trusts  
17 and conditions as may be prescribed by the grantors or devisors,  
18 upon approval of the Commission;

19 7. Enter into contracts on behalf of the Commission to  
20 implement the purposes of this act, and may accept gifts and grants,  
21 including real or personal property;

22 8. Own and control public access points to the scenic river  
23 area, issue use permits, and purchase easements and fee title to  
24 land within the designed area. Legal title to the property shall be

1 held in the name of the Southeast Scenic Rivers Commission. Any fee  
2 title acquired shall be limited to the specific public access points  
3 and the power of eminent domain shall not be used to gain control of  
4 such access points;

5 9. Review any action taken by any local, municipal, or county  
6 authority within the designated area of the Commission in an  
7 administrative adjudicatory proceeding brought upon the petition of  
8 any office or agency of this state, including the administrator, or  
9 of any person acting on behalf of the public interest, to determine  
10 whether such action conforms to the standards promulgated by the  
11 Commission or has an adverse effect upon the proper achievement of  
12 the purposes of this act. Upon a finding that such action does not  
13 conform or does have an adverse effect, the Commission shall order  
14 that the action be nullified, superseded, or amended to the extent  
15 necessary to produce such conformity or eliminate such adverse  
16 effect. The Commission may issue such orders as may be necessary to  
17 effectuate its primary order;

18 10. Hire an attorney or request legal assistance from the  
19 district attorney or the Office of the Attorney General when  
20 appropriate and if there is no conflict of interest;

21 11. Bring an action in the district court of any county of this  
22 state where service can be obtained on one or more of the  
23 defendants, to enjoin the acts or practices that appear to  
24 constitute a violation of any provision of this act or any rule

1 promulgated, and to enforce compliance with the provisions of this  
2 act. Upon a proper showing, a restraining order, permanent or  
3 temporary injunction, writ of mandamus, or other appropriate  
4 remedies including damages shall be granted. The court may not  
5 require the administrator or Commission to post a bond; and

6 12. Suspend the effectiveness of any action taken by a  
7 municipality or county within the designated area of the Commission  
8 when it appears the action has or may have an adverse effect upon  
9 the provisions of this act, whereupon all proceedings thereunder  
10 shall be held in abeyance upon receipt of written notice from the  
11 administrator pending a final determination of the Commission in  
12 regard to such action. If it is determined that such adverse effect  
13 exists, the Commission may nullify, supersede, or amend the action  
14 only to the extent necessary.

15 L. Nothing in this section shall be construed to prohibit or  
16 prevent local farming or ranching, silviculture, forestry, or other  
17 agricultural uses and practices.

18 M. Nothing in this section shall be construed as granting the  
19 Commission the power of eminent domain.

20 N. The Commission shall promulgate all rules necessary to  
21 implement the provisions of this act.

22 SECTION 5. NEW LAW A new section of law to be codified  
23 in the Oklahoma Statutes as Section 898.3 of Title 82, unless there  
24 is created a duplication in numbering, reads as follows:

1       The Southeast Scenic Rivers Commission or a board of county  
2 commissioners may, upon the request of a private landowner,  
3 authorize the removal of aggregate from the middle section of a  
4 designated river or from the riverbank if such removal is determined  
5 to improve the flow of the river. Such removal shall be limited to  
6 the amount necessary to accomplish that purpose. Nothing in this  
7 section shall be construed to permit the sale of aggregate removed  
8 from the river or riverbank or to authorize commercial mining or  
9 gravel operations in such areas.

10       SECTION 6.       NEW LAW       A new section of law to be codified  
11 in the Oklahoma Statutes as Section 898.4 of Title 82, unless there  
12 is created a duplication in numbering, reads as follows:

13       No agency or official of state government shall authorize or  
14 concur in plans of local, state, or federal agencies for the  
15 construction, operation, or maintenance of any dam or related  
16 project in or adjacent to any scenic river designated in Section 3  
17 of this act without legislative consent, except as needed by the  
18 municipalities located in the counties or the immediate vicinity of  
19 the scenic river for their municipal or domestic water supply if  
20 such uses and structures will not significantly interfere with the  
21 preservation of the stream as a scenic free-flowing system.

22       SECTION 7. This act shall become effective November 1, 2026.  
23

24       60-2-3790       YG       3/11/2026 4:27:46 PM



1  
2  
3  
4  
5  
6  
7  
8  
9  
10  
11  
12  
13  
14  
15  
16  
17  
18  
19  
20  
21  
22  
23  
24